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IN THE CIRCUIT COURT, FOURTH
JUDICIAL CIRCUIT, IN AND FOR
DUVAL COUNTY, FLORIDA

CASE NO.: 23-CA-008801

STEFEN WYNN,

Plaintiff,

vs.

CITY OF NEPTUNE BEACH,

Defendant.

_____/

DEFENDANT CITY OF NEPTUNE BEACH'S ANSWER AND AFFIRMATIVE DEFENSES TO SECOND AMENDED COMPLAINT

Defendant, CITY OF NEPTUNE BEACH ("the City"), answers Plaintiff's Second Amended Complaint as follows:

NATURE OF THE ACTION

1. The City acknowledges that Plaintiff is suing but denies that Plaintiff is entitled to the relief that he requests under the theories that he alleges.

2. Denied.

PARTIES

3. The City admits that Plaintiff was a Florida resident and was employed at the City. Otherwise, denied.

4. Admitted.

CONDITIONS PRECEDENT

5. Denied.

ACCEPTED: DUVAL COUNTY, JODY PHILLIPS, CLERK, 09/04/2024 12:07:59 PM

STATEMENT OF THE ULTIMATE FACTS

6. The City admits that Plaintiff was employed by the City during the approximate dates alleged and held the position of City Manager. Otherwise denied.

7. Denied.

8. Denied.

9. Denied.

10. Denied.

11. Denied.

12. Denied.

13. Admitted that the City Manager is usually required to attend City Council meetings and is routinely asked questions by the City Council. Otherwise denied.

14. Denied.

15. Denied.

16. Denied.

17. Denied.

18. Denied.

19. Denied.

20. Denied.

21. Denied.

22. Denied.

23. Denied.

24. Denied.

25. Denied.

26. Admitted that Plaintiff went to Mayor Brown's home and discussed his frustration with Councilwoman Key.

27. Without knowledge, thus denied.

28. Denied.

29. Admitted that a councilmember assisted Wynn by writing an apology letter. Otherwise denied.

30. Admitted that Plaintiff apologized for his wrongful behavior in a meeting with Lauren Key and the City Attorney. Denied that his apology was "forced" by anyone.

31. Admitted that Plaintiff's apology was not genuine and was "half-hearted." Otherwise, denied.

32. Admitted that Plaintiff did not resign. Otherwise, denied.

33. Admitted that Plaintiff mentioned hiring a lawyer. Otherwise, denied.

34. Admitted that Plaintiff apologized to Councilwoman Key in writing. Without knowledge whether Plaintiff was asked to resign. Otherwise denied.

35. The September 19, 2022 City Council meeting is recorded and the recording speaks for itself. Otherwise denied.

36. The documents referenced speak for themselves. Otherwise denied.

37. The document referenced speaks for itself. Otherwise denied.

38. Denied.

39. Denied.

40. Admitted that Plaintiff's handling of the water tower was poorly received by the Council and that the water tower became known as the big green monster. Otherwise denied.

41. Denied.

42. Importantly, Plaintiff was well aware of the tank and failed in his duties relating to the tank. Without knowledge relating to the allegations referencing an application; thus denied.

43. Admitted that Mr. Pardee was not fired. Without knowledge as to the Fire Marshall. Otherwise denied, as alleged, because Plaintiff was well aware of the tank and the related project and failed in his duties relating to the tank and the project.

44. Denied.

45. Admitted that certain complaints could have been made to the City Council. Otherwise denied. No answer is required for legal conclusions.

46. The City acknowledges that Plaintiff has retained a lawyer but denies liability for any of Plaintiff's attorney's fees.

COUNT I
PUBLIC EMPLOYEE WHISTLEBLOWER RETALIATION

47. The City restates its responses to paragraphs 1-46.

48. Admitted that Plaintiff is attempting to set forth a claim but denied as to liability for that claim.

49. Denied.

50. Denied.

51. Denied.

52. Denied.

53. Denied.

54. Denied.

RESPONSE TO PRAYER FOR RELIEF

Plaintiff is not entitled to the relief he requests in this section.

JURY TRIAL DEMAND

The City demands trial by jury.

DEMAND FOR ATTORNEY'S FEES AND COSTS

The City demands recovery of attorney's fees and litigation costs incurred in connection with defending Plaintiff's lawsuit.

AFFIRMATIVE DEFENSES

FIRST AFFIRMATIVE DEFENSE

Any alleged adverse action taken by defendant against the Plaintiff is the result of legitimate, non-discriminatory, non-retaliatory reason and would have been taken even in the absence of Plaintiff's alleged exercise of protected activities.

SECOND AFFIRMATIVE DEFENSE

Plaintiff's Complaint fails to state a claim upon which relief can be granted. Plaintiff was an at-will employee whose employment was subject to termination at any time and for any reason, with or without cause.

THIRD AFFIRMATIVE DEFENSE

The City exercised reasonable care to prevent and promptly correct any alleged retaliatory or discriminatory conduct; if any, however, Plaintiff unreasonably failed to take advantage of the corrective opportunities and policies provided by Defendant.

FOURTH AFFIRMATIVE DEFENSE

The City is entitled to a set-off of damages, including but not limited to, those amounts received by Plaintiff from collateral sources, including any interim earnings and benefits Plaintiff may have received after he stopped working for Defendant.

FIFTH AFFIRMATIVE DEFENSE

Plaintiff failed to mitigate his damages by obtaining equivalent employment following his separation from the City. Without admitting that Plaintiff suffered any damages, Defendant asserts that Plaintiff is barred from recovery for any period in which he failed to mitigate damages.

SIXTH AFFIRMATIVE DEFENSE

Plaintiff has failed to comply with all conditions precedent. To the extent that Plaintiff has failed to satisfy any conditions precedent that are necessary to maintain his claims or failed to fully exhaust his administrative remedies, such claims are barred.

SEVENTH AFFIRMATIVE DEFENSE

Any claims and damages of Plaintiff are barred or limited by the doctrine of after acquired evidence.

EIGHTH AFFIRMATIVE DEFENSE

The City invokes all protections and defenses available to it under Florida law, including but not limited to § 768.28, Fla. Stat.

NINTH AFFIRMATIVE DEFENSE

The City denies that Plaintiff engaged in any protected whistleblowing activity. However, even assuming, *arguendo,* that a trier of fact concludes that any alleged disclosures made by Plaintiff were protected by Section 112.3187, et seq., Florida Statutes, Plaintiff's alleged disclosures were made in bad faith or for a wrongful purpose.

TENTH AFFIRMATIVE DEFENSE

To the extent Plaintiff is attempting to seek relief for any allegedly retaliatory conduct under Section 112.3187 Florida Statutes, et seq., that is beyond the statute of limitations, such claims and relief are barred.

CERTIFICATE OF SERVICE

I CERTIFY that on this 3rd day of September, 2024, I electronically filed the foregoing with the Florida Court's E-Filing Portal, which will serve it on the following counsel of record by Electronic mail:

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